

IN THE HIGH COURT OF DELHI AT NEW DELHI
CIVIL APPELLATE JURISDICTION

CM APPL. 53193/2025

IN

FAO (OS) NO. 96 OF 2025

IN THE MATTER OF:

M/s Progressive Construction Ltd.

.... Appellant/ Applicant

Versus

M/s Sharma and Associates, Contracts Pvt. Ltd & Anr.

.... Respondent(s)

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THROUGH



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DELHI

DATED: 4.02.2026

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Respondent(s)

**REPLY ON BEHALF OF THE RESPONDENT NO.1 TO THE
APPLICATION FILED BY THE APPELLANT FOR CONDONATION OF
DELAY IN FILING AND RE-FILING OF THE APPEAL.**

Most Respectfully Showeth:

1. That the Respondent No.1 (sole contesting respondent) is filing a composite reply to the Applications filed by the Appellant for condoning the inordinate delay in filing and re-filing of the Appeal before this Hon'ble Court.
2. The Appeal has been passed by the Registry only on 25.8.2025 subject to office objection, as the Ld. Advocate for the Appellant has written in advocates remarks that "*put up before the court as it on my risk*" (pdf pg.2 of the Appeal). The Respondent is providing the bellow mentioned chart for giving an overview for adjudication of the applications :

S.No.	Particulars	Date	Comments/Calculation
i.	Date of Judgment	03.12.2024	CS(OS) No. 1751 of 2015 passed by the Ld. Single Judge whereby the Arbitral Award

			was affirmed and made decree/rule of the court.
ii.	Limitation period for filing appeal.	30 days	Intra Court appeal from Single Judge of High Court to Division Bench. (<i>Article 117 of the Limitation Act, 1963</i>)
iii.	Certified copy applied on by the Appellant	05.12.2024	
iv.	Certified copy prepared	10.12.2024	6 days excluded from the period of limitation as per Section 12 of the Limitation Act. .
v.	Appeal alleged to be filed by the Appellant	03.02.2025	Appeal filed with a delay of <u>26 days.</u> [62-36 days] (The Respondent does not have the said appeal, and is therefore unable to point out whether the said appeal was <i>non-est</i> in the eyes of law as per the Full Bench Judgment in <i>Pragati Constructions Consultants v. Union of India 2025 SCC OnLine Del 636</i>)
vi.	Appeal returned to the Appellant with objections	04.02.2025	Appellant has to re-file the Appeal within 7 days at a time and to rectify all errors within a period of 30 days. (<i>Chapter IV, Rule 3 of Delhi High Court Original Side Rules, 2018</i>) i.e. uptill <u>06.03.2025</u>
vii.	Appeal passed by the Registry of Delhi High Court subject to office objections and	25.08.2025	<u>173 days</u> delay in re-filing (from 06.03.2025 to 25.08.2025)

	at the risk of the Appellant		
viii.	Total delay in filing and re-filing of the Appeal		<u>199 days.</u> The delay is without any sufficient cause and the appeal ought to be dismissed as being barred by law. The appellant has not acted bonafide and diligently. Dismissal of appeal by this Hon'ble Court, will bring a quietus to litigation which had started more than 30 years ago.
ix.	Affidavits accompanying the Applications are defective, and the Applications for condonation of delay in filing of the Appeal and re-filing <i>are non-est</i> . There are no Applications to adjudicate upon. Limitation period would continue	07.02.2026	<u>339 days.</u>

3. The applications being CM APPL. 53193/2025 and 53197/2025 are frivolous, without any merit, lacking in bona fides, and moreover do not disclose sufficient cause for the delays as required under Section 5 of the Limitation Act, 1963. The explanations provided are vague,

unsubstantiated, and appear to be afterthoughts to cover up negligence and laches on the part of the Appellant. Granting condonation would cause grave prejudice to Respondent No. 1, which has a vested right in the finality of the impugned order dated 03-12-2024, upholding the Arbitral Award. The Appellant has failed to explain each day's delay diligently, as mandated by settled principles of law, and the applications deserve to be dismissed on this ground alone with costs.

4. The Appeal deserves to be dismissed on the following aspects :

- (i) *That the Applications are without any "sufficient cause". The appellant had pursued the appeal without diligence, and not in a bonafide manner.*
- (ii) *The Duration of delay is huge/excessive. Valuable rights have accrued in favour of the Respondent No.1.*
- (iii) *The Affidavits accompanying the application are defective rendering the applications as non-est. There is no application before this Hon'ble Court to adjudicate upon.*
- (iv) *That the disputes amongst the parties is more than 3 decade old, and there would be quietus amongst the parties after dismissal of the application being barred by time.*

5. The law of limitation is based upon public policy that there should be an end to litigation by forfeiting the right to remedy rather than the right itself. The grounds for rejection are detailed herein bellow:

- (i) *That the Applications are without any "sufficient cause". The appellant had pursued the appeal without diligence and not in a bonafide manner.*

This Hon'ble Court may not exercise its 'discretion' to condone the applications filed by the Appellant as no sufficient cause has been

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pleaded. The same is apparent from the reading of the reasons in the applications, which are reiterated herein bellow:

CM APPL. 53197/2025- <u>Application for Condonation of Delay in filing of the Appeal</u>	
Pleading of Appellant	Comments on behalf of the Respondent
3. That even though as per record it reads that the Certified Copy was ready as of 16- 12-2024, the same was not available. Thereafter, due to the ensuing winter vacation, certain time was lost. Thereafter, it was only on 01-02-2025 when the Certified Copy of the Impugned Final Order/ Judgment was collected.	• The averment in the corresponding para are incorret, as the certified copy was applied on 5.12.2024 and was ready on 10.12.2024. The winter vacation commenced on 25.12.2024, while the certified was collected belatedly on 01.02.2025. • Collecting certified copy on 01-02-2025 indicates negligence, as the Appellant failed to act promptly post 10.12.2024. • Hence, the above reason does not constitute sufficient cause under Section 5 of the Limitation Act.
4. That pursuant to having received the Certified Copy of the Impugned Final Order/ Judgment was shared with the Appellant. Thereafter, the Appellant tabled the said Order with the Board for taking appropriate remedial actions. The board also took advice on the relevant sections under which the Appeal was to be preferred. Due to the aforesaid, substantial period was lost.	• The Appellant's assertion of sharing the order with the Board and seeking advice is generic and lacks specifics, such as dates of meetings, names of advisors, or documentary proof, such as minutes of meetings are not placed on record hence, not sustainable in law. • Such internal processes do not excuse statutory

	limitation periods, especially when the Appellant is a corporate entity with access to legal resources. • The "substantial period lost" is unexplained day-wise, rendering it insufficient cause.
5. That due to the bereavement in the family of the Authorized Representative of the Applicant/Appellant, the Authorized Representative had to shift back to Andhra Pradesh.	The alleged bereavement in the family of the Authorized Representative is unfortunate, but unsubstantiated, no details like dates, relationship, or proof (e.g., death certificate) are provided. Even if true, shifting to Andhra Pradesh does not explain why alternative arrangements were not made by a company of the Appellant's stature. This appears to be a contrived excuse and does not justify the delay.
CM APPL. 53193/2025- <u>Application for Condonation of Delay in Re-filing of the Appeal</u>	
3. That the present Appeal was filed with the registry of this Hon'ble Court on 03.02.2025, when certain objections were notified by the registry of this Hon'ble Court on 04.02.2025 Prima facie one of the objections raised by the registry of this Hon'ble Court was with respect to maintainability of an Appeal in terms of Arbitration Act, 1940, amongst other objection with regards to filing of the present Appeal under FAO(OS). Accordingly, rectification as	• The objection with respect to maintainability was intimated by the Registry of this Hon'ble Court on 17.2.2025, and said objection and other defects should have been rectified within the 30 days provided by the Delhi High Court Original Side Rules.

suggested by the registry of this Hon'ble Court was carried out and the accompanying Appeal was refiled with the registry of this Hon'ble Court. Thereafter, when the accompanying Appeal was refiled, the registry of this Hon'ble Court raised the same defect, with respect to the nomenclature. Accordingly, the counsel for the Applicant/Appellant duly met the concerned officer in-charge when certain time was sought by the concerned official for obtaining clarification. It was during this period when the concerned officer in-charge further intimated that certain documents were illegible and legible copies were required to be filed along with the accompanying Appeal. Taking into account that the Appeal pertains to a project that was awarded in the year 1989 and the records being voluminous, it took substantial time for getting the same typed. It is in this backdrop that an inordinate delay of 155 days was caused in re-filing the present Appeal	• Appellant cannot take 266 days (from 03.12.2024 till 25.08.2025) for typing certain records, and the plea is exaggerated and obnoxious. The delay is inordinate and unexplained day-wise, failing the test of "sufficient cause". Furthermore the records have already been used before the Arbitral Tribunal and the Single Judge of this Hon'ble Court. A fair copy could have been obtained from the said record within the limitation period. • Filing of legible copy within 30 days period of limitation or further 30 days for curing the defect would have been enough, if the appellant would have been diligent or prompt.
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The above table shows that the Appellant was negligent in pursuing its remedy and the applications are without bonafide which needs to be rejected, resultantly, the appeal ought to be dismissed. The legal maxim "*dura lex sed lex*" which means "*the law is hard but it is the law*", stands attracted in such a situation.

(ii) *The Duration of delay is huge/excessive. Valuable rights have accrued in favour of the Respondent No.1.*

The appellant had the remedy for filing the appeal against the judgment dated 03.12.2024, but it has not been exercised or availed

it for a long time, due to which the right must come to an end or cease to exist after a fixed period of time. The total delay in filing and re-filing is of **199 days**. The Respondent's Managing Director is more than 76 years old, who has been pursuing the litigation for more than 3 decades, having suffered huge loss which was awarded, and also had to invest huge amount in litigation. Each day is causing grave hardship to him financially, emotionally and physically.

(iii) The Affidavits accompanying the application are defective rendering the applications as non-est. There is no application before this Hon'ble Court to adjudicate upon.

The negligence and disregard to court procedure by the Appellant is apparent on the face of the record, as the Appellant has used the same general affidavit dated 03 FEB 2025 having entry number as 22(a)/2025 for all its six applications including CM APPL. 53193/2025 & CM APPL. 53197/2025. **It is submitted that the Appellant has not even cared to see that it would be impossible for an affidavit dated 03.02.2025 to affirm facts which have occurred later on i.e. upto 25.08.2025.** The Appellant is even negligent on this account, and has not pursued the appeal diligently. The lack of bonafide and negligence is apparent from using the same affidavit with every application. See affidavit at page 817-818 printed (pdf. 843-844), 821-822 printed (pdf. 847-848), 825-826 printed (pdf. 851-852), 830-831 printed (pdf. 856-857), 835-836 printed (pdf. 861-862), 841-842 printed (pdf. 866-867).

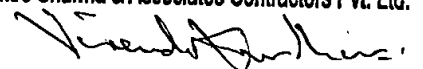
- (iv) ***That the disputes amongst the parties is more than 3 decade old, and there would be quietus amongst the parties after dismissal of the appeal being barred by time.***

This Hon'ble Court may be pleased not to exercise its discretion in condoning the delay, seeing the overall facts and circumstances as detailed in present reply. The appellant in order to prolong the litigation has filed the above appeal belatedly, the appellant during the course of the litigation has been deliberately doing similar acts for unjust motives, and has also been penalized with heavy costs by this Hon'ble Court on the said aspect, despite the above the appellant has not mended its way. The impugned judgment has been pronounced on 03.12.2024, and till 07.02.2026 the hearing on merits of the appeal has not taken place. If the applications for condonation of delay is allowed, grave prejudice will be caused to the Respondent as the nefarious scheme of the appellant would continue, and the appeal would commence after more than 14 months of passing of the judgment, with no immediate end in sight.

It is, therefore, most respectfully prayed that this Hon'ble Court may be pleased to:

- a) Dismiss the applications for condonation of delay with exemplary costs;
- b) Pass any other order(s) as deemed fit in the interest of justice.

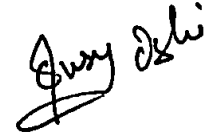
For M/s Sharma & Associates Contractors Pvt. Ltd.



Respondent No. 1
Managing Director

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THROUGH





DELHI

DATED: 4.02.2026

INSAAF DUGGAL, OJUSYA JOSHI,
S.K. MUKHI, & AAYUSHI GUPTA
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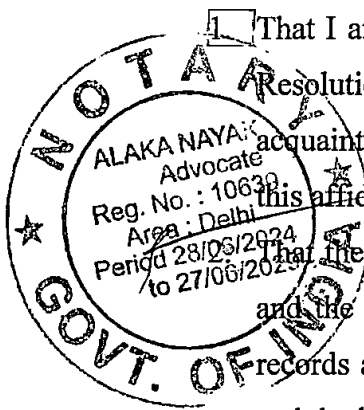
Versus

M/s Sharma & Associates, Contractor Pvt. Ltd. & Anr.

...Respondent(s)

AFFIDAVIT

I, Virender Kumar Sharma, aged about 76 years, Managing Director, M/s Sharma & Associates, Contractor Pvt. Ltd. having its Registered office at F-133, Ashok Vihar Delhi-110052 presently working from H. No. 940-D, Himshikha Colony, Pinjore-134104, Distt. Panchkula (Haryana), currently in Delhi, do hereby solemnly affirm and declare as under:-



1. That I am the Managing Director of the Respondent no.1 am authorised vide Board Resolution dated 3/8/2025 to represent in the aforesaid matter and I am well acquainted with the facts and circumstances of the case and am competent to swear this affidavit.

2. That the accompanying reply has been drafted by my counsel under my instructions, and the facts stated in para 1 to 5 are true to my knowledge and derived from the records and parts of para 2-5 are based upon legal advice which I believe to be true and the last para is prayer to this Hon'ble Court.

or M/s Sharma & Associates Contractors Pvt. Ltd.

3. I say that nothing material has been concealed therefrom.

Virender Kumar Sharma

Managing Director

DEPONENT

VERIFICATION:

Verified at Delhi on this 04 day of February, 2026, that the contents of the para 1 & 2 of the affidavit are true and correct to my knowledge, no part of it is false, and nothing material has been concealed therefrom.

For M/s Sharma & Associates Contractors Pvt. Ltd.

IDENTIFIED THAT THE DEPONENT
Smt./Km.....
S/o, W/o, D/o.....
Do.....
identified by Shri/Smt.....
has Solemnly affirmed before me
New Delhi on.....
that the Contents of the affidavit which
seen read & explained to him are true and
Correct to this knowledge

DEPONENT
Managing Director

04 FEB 2026



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Duggal & Consociates <lawyerduggal@gmail.com>

Re: Matter titled as M/s Progressive Construction Ltd. Vs M/s Sharma & Associates Contracts Pvt Ltd. & Anr.

1 message

Duggal & Consociates <lawyerduggal@gmail.com>

4 February 2026 at 18:21

To: Arjun Singh <adv.arjundsingh@gmail.com>, office@agveritaslaw.com

Dear Sir/Madam,

Please find enclosed the PDF of reply to application for condonation of delay on behalf of Respondent.
Kindly acknowledge the Receipt

Thanks and Regards,

Insaaf Duggal
Advocate

Postal Address: 263, Lawyer's Chambers-I, Sher Shah Marg, Delhi High Court, New Delhi-110003

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